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PART II

Statutory Notifications (S.R.O.)

GOVERNMENT OF PAKISTAN

NATIONAL ELECTRIC POWER REGULATORY AUTHORITY

NOTIFICATION

Islamabad, the 7th September, 2015

S. R. O. 912 (I)/2015.— In exercise of power conferred under section 35 of the Regulation of Generation, Transmission and Distribution of the Electric Power Act, 1997 (XL of 1997) read with rule 5 of the National Electric Power Regulatory Authority (Market Operator Registration, Standards and Procedure) Rules, 2015 and Article 3.4 of the Commercial Code 2015 notified through S.R.O. 542(I)/2015 dated June 2, 2015, in partial modification of S.R.O. 542 (I)/2015 dated June 2, 2015, the National Electric Power Regulatory Authority is pleased to direct that the following amendments shall be made in the Commercial Code, 2015, namely:—

In the aforesaid Commercial Code,—

- (a) in Article 1, after clause 10, following clause 10a, “Energy Purchase Agreement (EPA)” means the agreements signed by NTDC with an IPP to procure power on behalf of Distribution Companies and administered by CPPA-G and all further agreements for procurement of power signed by CPPA-G with an IPP on behalf of Distribution Companies”, shall be inserted;

(3193)

- (b) in Article 2, clause 2.2.4 shall be renumbered as 2.4 and following clause 2.5, "The provisions of this Code shall not be interpreted in a manner which operates to extinguish any rights or liabilities of Parties to Power/Energy Purchase Agreements which are in field at the time of the notification of this Code.", shall be inserted;
- (c) in Article 8, clause 8.2.1(x) for the "power" occurring for the second time, the word "energy", shall be substituted;
- (d) in Article 9, clause 9.4.5 shall be substituted with the following words, "CPPA-G shall order the transfer of payments corresponding to the invoices raised by Market Participant as per relevant provisions of their respective Power/Energy Purchase Agreement";
- (e) in Annexure 3, paragraph 4 after the bullet "Previous day transactions" following bullet point "Previous Day Transactions (Collection)", shall be inserted;
- (f) in Annexure 3, Paragraph 4, in last bullet point starting with "retained amount" for the words "income tax" following words, "taxes, and Suppliers/Contractors payment etc.", shall be substituted.

[No. NEPRA/NCC-2015.]

SYED SAFEER HUSSAIN,
Registrar.